

**CARY COMMUNITY CONSOLIDATED
SCHOOL DISTRICT 26**



ENGAGE, EMPOWER, EXCEL

**EDUCATIONAL SUPPORT
PERSONNEL HANDBOOK**

2021-2025



CARY COMMUNITY CONSOLIDATED SCHOOL DISTRICT

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Briargate • Deer Path • Oak Knoll • Three Oaks • Cary Junior High

WELCOME – EDUCATIONAL SUPPORT PERSONNEL (ESP)

On behalf of the Board of Education and the Administrative team, this Handbook has been prepared for all Educational Support Personnel to provide information regarding the operation and procedures and personnel expectations in Cary Community Consolidated School District 26. In addition to the included procedures, employments are governed by Board policy. Copies of evaluation forms used by the District and Board Policies affecting ESPs are included in this Handbook. A separate booklet with Job Descriptions is available in all school offices in the event to research any positions posted during the school year for which you might wish to apply.

If you have any questions concerning the contents of this Handbook, the Building Principal or your immediate supervisor should be consulted for assistance.

On behalf of the School District I want to thank you for everything you do within your area of responsibility and for the District as a whole. Each of you is very important to the total District 26 learning community and to the education of our students. I wish you the very best for a productive and successful school year. If you have questions, concerns, or suggestions for improving services please feel free to contact me.

Dr. Brian Coleman
Superintendent

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INTRODUCTION

The term "Educational Support Personnel" (ESP) refers to employees of the Board of Education whose positions do not legally require them to hold teaching licenses from the Illinois State Board of Education. The primary responsibility of all Educational Support Personnel is the safety and the welfare of the students of the District. The Board of Education, through the office of the Superintendent, shall prepare Educational Support Personnel to assume these responsibilities by providing appropriate instruction and/or training suitable for their positions of employment.

This Employee Handbook is designed to inform you of the District's normal employment policies and supersedes all previously issued Handbooks. Unless otherwise specifically provided in a collective bargaining agreement which covers the employee, the provisions of this Handbook apply to all ESP employees in the District. It is expected that present and new ESP employees will become familiar with the contents of this Handbook and conduct themselves as required under its provisions. The provisions of in this Handbook are not to be read narrowly, but serve as general guidelines to provide a framework for day to day practices.

Nothing in this Handbook shall be deemed to create any express or implied contract of employment or any other legally enforceable rights except as otherwise specifically provided in a collective bargaining agreement which covers the employee. Educational Support Personnel are employed on an at-will basis and this Handbook does not alter this at-will relationship. The District may alter or rescind any policy or practice, or adopt new policies or practices, at any time, with or without notice. In an emergency or when otherwise deemed necessary by the District, additional information will be provided to ESP employees regarding changes or new rules and regulations initiated by the District. An ESP employee's decision to continue employment with the District following publication of this updated Handbook or any future revisions shall be deemed to constitute the employee's agreement with all such changes.

Each employee is expected to give faithful and complete service, and the continuation of his/her employment shall be based only on good performance, efficiency, the necessity of the position, and the appropriation of sufficient funds. This Handbook should be kept on file and referred to when the need arises. It will also serve as a reference and guide to administrative action that will be taken in the event of a conflict with an employee or among employees. The Human Resources Coordinator or designee will serve as the administrator for the ESP Handbook. Although the District encourages any problems resulting from an interpretation of the Handbook to be resolved as close to the conflict as possible, issues which are not resolved may be referred to the Human Resources Coordinator.

To the extent the terms of this Handbook conflict with a specific term of a collective bargaining agreement which covers an employee, the term of the collective bargaining agreement controls.

MANAGEMENT RIGHTS

Except as otherwise indicated by the terms of this Handbook or specifically provided in a collective bargaining agreement that covers the employee, the following rights, obligations, and responsibilities shall continue to be vested in the Administration and Board of Education of District 26 as basic management rights, which will be exercised as required subject to applicable federal and Illinois law. Management retains the following rights:

- The right to increase or decrease operations
- The right to introduce new and improved methods and facilities
- The right to regulate the quantity and quality of production
- The right to employ, lay-off, re-employ and transfer employees
- The right to apply rules and regulations of discipline
- The right to discipline and discharge employees
- The right to set hours of work and overtime
- The right to decide the number, location and relocation of its facilities
- The methods and schedule of work

Each of you by virtue of your employment with District 26 agrees to conform to the policies, rules and regulations of District 26. **Except as otherwise specifically provided in a collective bargaining agreement which covers the employee,** ESP employees are employed on an at-will basis, your employment and compensation can be terminated, with or without cause, and with or without notice, at any time, at the option of District 26 or yourself. You should understand that the Administration is not authorized to enter into an agreement for employment for any specific period of time or to make any agreement contrary to the foregoing. Further, no supervisor or other Administrator is authorized to alter or modify, either orally or in writing, any ESP's at-will employment status.

GENERAL PROCEDURES

CONDITIONS OF EMPLOYMENT

When applying for a job vacancy in the District, an ESP candidate must have on file in the District Administration Center a completed application form, which must include references. Upon hiring, each new ESP employee must have the following items on file:

1. An approved health certificate from a physician authorized to practice medicine in Illinois. The District will assume the costs of such physical examination, provided the employee is willing to go to the physician selected by the District. If an employee desires a physician of his/her choice, the employee must assume the difference of this expense. An ESP who is working as either a bus driver or Early Childhood Education (ECE) employee shall provide certification of a negative tuberculin test, to include a chest x-ray, tuberculin test, or proof of negative x-ray or tuberculin test in the last 90 days.
2. An acceptable criminal background check from both the Illinois State Police and

the FBI. Fingerprinting and consent for a criminal background check is paid for by the District. A review of the criminal background check as provided by the Illinois State Police and FBI, which includes a check of Statewide Sex Offender Database and Violent Offender against Youth Database, will be necessary prior to a person reporting for work as an employee. The District reserves the right to discharge any employee whose background investigation check reveals a conviction for committing or attempting to commit any offense prohibited under the *School Code* or who falsifies, or omits facts from his/her employment application or during the hiring process.

3. Employment Verification documentation and an I9 form that passes an E-Verify check.
4. All school district employees are Mandated Reporters under the Abused and Neglected Child Reporting Act. This acknowledgement form is required to be signed by every employee during the initial completion of pre-employment paperwork.
5. ESP employees whose positions require certification, licensing, or academic transcripts must submit those documents for the District's files.

BUS DRIVER MEDICAL EXAMINATIONS

To help ensure that bus drivers are able to perform their duties safely, they are required by law to take a medical examination annually. The exam will be performed at District 26's expense and will include a physical, hearing and vision exam, drug and alcohol testing, and any other relevant testing or information required by the Illinois Secretary of State's *Physical Examination and Certificate for Illinois Bus Drivers*.

PERSONNEL RECORDS

The District maintains official personnel records for all ESP employees in accordance with Illinois and federal law. Employees may have access to their personnel records as provided under Board Policy 5:150 and its administrative regulations.

EMPLOYEE EVALUATION

The primary objective of District 26's evaluation program is to involve the employee and supervisor in the process of reviewing responsibilities as identified in the Job Description Specifications. This time also presents an opportunity to review achievements and discuss future performance goals and personal growth objectives. Annually conducted, these evaluations will provide a history of development and progress.

A minimum of one evaluation form is to be completed each year by the employee's immediate supervisor. This evaluation is to be discussed with and signed for inclusion in the employee's personnel file. Examples of evaluation forms can be found at Cary26.org in the Human Resources section.

CHANGE IN STATUS

Any change in personal status such as name, address, phone number, marital status, etc., should be communicated to the Human Resources Office. The following forms may be required:

1. An employee information sheet to update your records.
2. Forms to notify insurance carriers of your change in status.
3. The IMRF and TRS pension programs will need to be updated by the employee with any information changes.
4. In the event of a name change, a copy of the new social security card will be required in order to process the change.

INTERNET ACCESS

Procedures are established and posted in each building relative to access to the internet while in the District. For further information, please contact your building office. All new employees must sign an Internet Acceptable Use Policy Form.

PROBLEMS/CONCERNS

Should any ESP employee have any concerns or questions regarding policies, procedures or other district directives, he/she should discuss the matter with the Building Administrator prior to contacting the Superintendent.

REPORT OF WORK RELATED INJURIES

If the employee injury is an emergency or a severe injury, an ambulance should be called and an initial report can be completed by the supervisor or nurse on duty and sent to Human Resources for direct report to Sedgewick (Our worker compensation carrier).

All injuries on district property should be reported immediately to ensure that they are recorded and the employee can get medical attention if it is needed immediately or later. In order to report an injury the employee must first contact Company Nurse at 1-855-921-9518. Company Nurse will make a determination if the employee should visit a medical facility or not. When the employee is able, they should fill out the Employee's Injury of Report and this report should be sent to the Human Resources Coordinator.

Should the employee not need immediate medical attention on the day of the incident and request treatment at a later date and, the principal or nurse will need to give the Northwestern Medicine Employer Authorization form to the employee and update the Human Resources office. Because the employee already called and reported the incident to Company Nurse there should already be information on file with HR and our Workers Comp Carrier.

Any employee incident must be reported to HR and the building principal so that if the incident involves a hazard (i.e. icy parking lot) maintenance can assist with resolving the issue and the incident can be logged with OSHA for compliances standards.

Human Resources or the building nurses can supply the needed forms to injured employees who need to be referred to Northwestern Medicine for further treatment. Employees who require continuous treatment may also be given a temporary pharmacy

card which can be obtained from the Human Resources Coordinator if it is needed.

Injury reporting and Work Comp forms will be kept electronically on file with the nurse's office and the HR office for both employees and supervisors to complete necessary paperwork when an accident has occurred.

All employees are protected against injury due to accident or disease arising out of and in the course of their employment in the District under the *Illinois Workers' Compensation Act*. The District provides workers' compensation benefits through its insurance plan for injured employees.

Employees who have questions, should contact the Human Resources office or their building nurse for further assistance.

SCHOOL CLOSING DAYS

On days the schools are closed because of weather and/or other declared emergencies, twelve month personnel are required to report to work unless notified by the District 26 Administration not to report to work. If you are unable to get to work due to conditions such as weather you will not be paid for the day unless you apply a vacation or personal business day with the approval of the Superintendent.

ESP employees who do not work a twelve month year should not report to work on a school closing day. The day will be made up at the end of the year.

COPYRIGHT, PATENT AND TRADEMARK

WORKS MADE FOR HIRE – Whenever an employee develops instructional materials and/or computer programs, or otherwise performs such work within the scope of his/her employment, the District is deemed to be the owner of the copyright, patent, or trademark.

COPYRIGHT COMPLIANCE – It is each employee's responsibility to abide by the District's copyright compliance procedures and to obey the copyright laws. The District is not responsible for any violations of the copyright laws by its staff or students. An employee should contact the Superintendent or designee whenever the employee is uncertain about whether using or copying material complies with the District's procedures or is permissible under the law, or wants assistance on when and how to obtain proper authorization. At no time shall it be necessary for District employees to violate copyright laws in order to properly perform his or her duties.

ABSENCE PROCEDURES

All employees must report absences through the Frontline Absence Management system. Absences should be reported through the AESOP website www.aesoponline.com as soon as it is apparent the employee will be unable to work. Employees may be required to furnish medical certification of illness or fitness to return to work after any three (3) consecutive days of absence.

EMPLOYMENT TERMINATIONS AND SUSPENSIONS

VOLUNTARY TERMINATION

Employees are requested to provide a minimum of at least two (2) weeks' notice of resignation, if possible. If the District determines that allowing an employee to work through his/her specified resignation date will have an adverse effect on the District, the District may terminate the employee prior to the date of specified in the employee's notice. Once the resignation has been submitted, the final working day cannot be changed unless requested or approved by the District.

INVOLUNTARY TERMINATION AND SUSPENSION

The District may terminate an ESP employee involuntarily at any time and for any reason, subject to any collective bargaining agreement that covers the employee as well as Illinois and federal law. The recommendation to discharge an employee may be initiated by the Building Administrator. Any employee whose termination is a result of an involuntary dismissal will be given an opportunity to conference with the Superintendent and review the reason(s) for dismissal. The affected employee may have a representative of the employee's choosing present during the conference. The employee will be given an opportunity to respond to the reason for the recommended dismissal and will be afforded an opportunity to meet with the Board of Education in closed session to review the recommendation.

The administration reserves the right to suspend an employee with or without pay in accordance with Board Policy 5:290, and its administrative regulations.

REDUCTION IN FORCE (RIF)

If a full time ESP employee's position is being eliminated or will have its hours reduced by the Board as a result of a reduction-in-force decision to either decrease the number of employees or to discontinue a particular type of ESP service, written notice, together with a letter of honorable dismissal and the reason therefore will be issued to the employee by first class mail and certified mail, return receipt requested, at least 30 days before the effective date of the dismissal. Seniority within the ESP job categories set forth below will regulate the order of reduction-in-force. The employee with the shorter length of continuing service, within the respective category of position, will be dismissed first, provided that employee with greater seniority possess the skills, qualifications, and abilities necessary to fill the position of the employee with less seniority.

Annually, by February 1, the District will prepare and post a seniority list for full-time ESP employees that is categorized by position and shows the length of continuing service of each employee in that category credited from his/her start date in that position.

Any vacancies during the recall period established under Illinois law shall be offered to the full-time employees who were reduced-in-force from that category of position in the reverse order of reduction, provided they are qualified to hold such positions. Employees shall be deemed to have waived their recall rights and will no longer be

eligible for any other vacant positions that become available during the recall period if they fail to accept a vacant position offered to them within administratively-established deadlines.

ESP JOB CATEGORIES

Accounts Payable/Administrative Assistant to the Director of Finance and Operations
Administrative Assistant to the Director of Curriculum and Instruction
Administrative Assistant to the Director of Special Services
Bus Driver
Executive Administrative Assistant to the Superintendent/Board of Education
Finance Coordinator
Health Clerk
Human Resources Coordinator
Interventionist
Lunchroom Supervisor
Mechanic
Occupational Therapist
Occupational Therapist Assistant
Operations Coordinator
Physical Therapist
Registered Nurse
Technology Coordinator
Technology Support Specialist
Transportation Coordinator
Transportation Dispatcher/Administrative Assistant

TRANSFERS

Employees may apply in writing to the Superintendent or designee for consideration of a transfer to any existing vacancy or newly created position. The District may determine to transfer an employee involuntarily to a different position at any time.

UNEMPLOYMENT INSURANCE

All ESP employees are covered under the Illinois unemployment insurance program if their position or hours are lost due to no fault of their own. However, unemployment laws do not provide benefits to school employees during the summer, winter and spring breaks if the employee is returning to work in the fall. Because of this, each nine month employee will receive a letter stating that they are reasonably assured that their position will be reinstated in the fall.

FINAL PAYCHECK

An ESP employee's final paycheck will be adjusted for any unused, earned vacation credit. Any unused personal and sick days will be reported to IMRF/TRS for service credit and are not paid out to the employee. Any employee who leaves the District will receive his/her final pay at the end of the next regular pay period or as otherwise required by the *School Code*.

DRESS

ESP employees shall be attired in a manner that will not detract from the educational process. Employees working in conjunction with District programs or activities that require special facilities, laboratories, equipment, or handling of special materials are expected to observe health and safety regulations pertaining to apparel.

EXPENSES

Employees shall be reimbursed for expenses approved by the Superintendent or designee. Approval must be obtained in advance. An expense form shall be completed and signed by the employee indicating the nature and the amount of expenses claimed.

PERSONAL BELONGINGS

Employees have no expectation of privacy in any District-owned locker, closet, desk, computer, or other equipment used by the employee. These are subject to search and confiscation at any time.

COMPENSATION, BENEFITS, AND LEAVES

COMPENSATION

The Superintendent and/or designee will determine salary and wages for ESP employees not covered by a collective bargaining agreement and will submit compensation recommendations to the Board of Education for approval. Salary increments and increases are dependent on evidence of continuing satisfactory performance. Salary and wages for ESP employees covered by a collective bargaining agreement will be given in accordance with the agreement.

OVERTIME/COMPENSATORY TIME

OVERTIME – Every effort must be made to complete assignments during the regular work week. An employee covered by the overtime provisions in federal or Illinois law **shall not work overtime** without the **prior** written authorization of the employee's Building Administrator. Only hours actually worked will be used to calculate the 40 hours threshold before overtime pay is applied (i.e. sick, personal, vacation, and holidays are not counted).

No overtime or "comp time" is to be worked without the prior approval of the employee's Building Administrator. Whenever approved overtime is worked and reported on the timesheet, the Building Administrator must initial next to that time.

COMPENSATORY TIME-OFF - Employees may be given 1-1/2 hours of compensatory time-off (comp time) in lieu of cash payment for each hour of overtime worked. At no time may an employee's accumulated compensatory time-off exceed 240 hours, which represents 160 hours of overtime.

An employee who has accrued compensatory time-off shall be permitted to use comp time in at least half-day components, provided the request does not disrupt the District's operations. Use of accumulated compensatory time-off must be scheduled in advance

and approved by the employee's supervisor.

Upon termination of employment, an employee will be paid for unused comp time at the higher of:

1. The average regular rate received by such employee during the last three years of employment; or
2. The final regular rate received by such employee

Comp time is time during which the employee is not working and is, therefore, not counted as "hours worked" for purposes of overtime compensation.

PAY SCHEDULE

Employees are paid on the 5th and 20th of each month unless otherwise specifically provided in a collective bargaining agreement which covers the employee, or unless the 5th and 20th fall on a weekend or holiday in which case the payment may be delivered earlier.

DIRECT DEPOSIT

An employee's payroll check can be directly deposited to his/her bank, credit union, or savings institution. To begin the process, complete an "Authorization Agreement for Direct Deposit" form which is available by request from the payroll or human resources department.

TIMESHEETS

Each hourly employee is responsible for completing his/her own timesheet and submitting it to his/her Building Administrator for approval on the date indicated on the timesheet. Timesheets are available at each building. Every line on the timesheet must be completed.

When using a sick, personal, or vacation day, the employee should write his/her usual number of hours to be worked on that day and write "sick day", "personal business day" or "vacation day" next to the line. Employees who do not qualify for sick, personal or vacation days or those employees that have exhausted those days, a "0" should be written on the line and the words, "No Pay Day" should be written next to it.

Timesheets are to be submitted in accordance to the payroll schedule and will be turned in to the building administrative assistant. The employee's signature as well as the Building Administrator's signature must be on each timesheet prior to sending it to the Administration Center for processing. These signatures verify the accuracy of the reported work time.

Because timesheets need to be approved by a Building Administrator and delivered to the Administration Center, it is imperative that they are submitted on time. Periodically, timesheets will need to be submitted prior to a Friday due to a school or federal holiday. When this occurs, you will receive notification. Employees who do not submit their timesheets on the date indicated, will not be paid until the following pay period.

RETIREMENT FUNDS FOR EDUCATIONAL SUPPORT PERSONNEL

IMRF eligible employees may retire from Cary District 26 by meeting age requirements and becoming vested in IMRF.

The Illinois Municipal Retirement Fund (IMRF) was created to provide a sound and efficient system for the payment of retirement annuities, disability and death benefits to employees of local governments in Illinois. IMRF is financed by both employee and employer contributions.

All eligible ESP employees must participate in the Illinois Retirement Fund (IMRF) System. Eligible employees are currently defined by law as individuals who are expected to be employed for a minimum of 600 hours over a twelve month period. The employee's IMRF contribution of 4.5% will be deducted from each paycheck. The district will contribute the remaining 4.5% for each qualifying employee to equal the required 9% total contribution.

The Board of Education will comply with all applicable rules and regulations governing IMRF contributions.

Contributions of Social Security and Medicare are deducted from each employee's paycheck. The Board of Education will comply with all current applicable federal regulations governing Social Security contributions.

The Board will grant a pay increase of five percent (5%) including any raise to be received in the final year of employment for those employees who elect to retire after the age of 55 (62 if hired after 1/1/2011), are eligible for a retirement annuity from the Illinois Municipal Retirement Fund, have completed a minimum of ten (10) years of service in District 26 and have notified the Board of Education no later than October 1 of his/her intent to retire effective at the close of the school year. The employee shall hold the District 26 Board of Education harmless should there be any provisions of this policy found to be contrary to law.

Nothing in this policy prevents the Board of Education from offering additional incentives to retiring Educational Support Personnel.

INSURANCE

Unless otherwise specifically provided in a collective bargaining agreement which covers the employee, group health, dental, life and disability insurance plans are provided by the Board of Education for full-time employees (40-hour work schedule) with premiums paid up to 100% by the District. (See insurance rates charts for specific pricing.)

Part-time ESP employees working a minimum of 20 hours per week will be given the opportunity to participate in the health, dental, and vision insurance plans with the District paying a pro-rated share of the cost equal to the percent of time worked. Any costs to the employee will be paid through payroll deduction and may be tax-sheltered

through the District's Section 125 Plan.

The insurance benefit package provide by the Board will include:

1. Single medical coverage
2. Single dental coverage
3. The District will also pay an amount toward an eligible employee's dependent health and dental insurance premiums based on his/her years of service under IMRF.
4. Term Life Insurance and AD&D coverage at a level of \$50,000 for all full-time (40 hour work week) employees.
5. Long Term Disability Insurance policy to provide a 2/3 benefit, for all full-time employees and individuals scheduled to work a minimum of 30 hours a week.
6. Savings accounts for medical expenses will be provided as an option to ESP employees.

Upon completion of thirty (30) days of disability, an eligible employee may file for disability benefits with the IMRF system. Benefits received through IMRF will be dependent on the employee's eligibility status. An employee may not receive sick leave benefits concurrently with IMRF or any other disability insurance benefit.

Each ESP is also covered under the District's liability insurance policy that protects all employees acting within the scope of their employment from claims and lawsuits arising from personal injury, property damage, and civil rights suits. Protection is limited to those coverages outlined in the insurance policy and is the same for all employees of the District.

OPEN ENROLLMENT

Open enrollment for insurance benefits is held in May or June with a July 1st effective date. At this time employees may add coverage(s) without a qualifying event, switch plans and drop coverage.

INSURANCE PREMIUMS AND NO PAY DAYS

The following is a clarification of insurance benefits when applying no pay days, leave days without pay, and terminating or retiring prior to the end of the school year.

1. A. For those employees who take leave during a year, retire, resign, are terminated, or take days without pay, the following formula will be used to determine the Board of Education's insurance premium liability:
$$\frac{\text{Number of days worked}^*}{\text{Number of contracted days}} = \% \text{ of Board's obligated insurance cost}$$
2. A. For those employees who qualify as disabled by a doctor's statement indicating their inability to perform their work related duties, the following formula will be used to determine the Board of Education's insurance premium liability:

$$\frac{\text{Number of days worked}^*}{\text{Number of contracted days}} = \% \text{ of Board's obligated insurance cost}$$

Any ESP employee who is eligible to receive disability or retirement annuity benefits under the Illinois Municipal Retirement Fund may opt to remain in the District's medical insurance plan at his/her own expense in accordance with Illinois law.

*Includes all days worked, on sick leave, personal leave, bereavement leave, and approved paid leave days.

COBRA CONTINUATION

COBRA (*Consolidated Omnibus Budget Reconciliation Act of 1985*) refers to the eligibility of employees to continue health insurance coverage. Employees and/or their dependents may elect to continue to participate in the District's comprehensive medical benefits, which would otherwise end because:

- Employment terminates for reasons other than gross misconduct: or
- Hours of employment are reduced and the employee is no longer eligible for coverage.

An employee's dependents may elect to continue comprehensive medical benefits, which would otherwise end because:

- Of divorce or legal separation; or
- A dependent child ceases to be a dependent as defined; or
- The employee is deceased

All participants who purchase benefits under COBRA must make timely payments to the COBRA carrier in order to continue monthly coverage.

VACATIONS

1. Educational Support Personnel who are employed for twelve (12) calendar months shall be granted 10 paid vacation days upon hire. If the start date for a new full time employee is after July 1st, their vacation time will be prorated based on the remaining time left in the school year. In subsequent years, vacation will be added on July 1st of each year. After the completion of the first year of full time employment, the employee will be eligible for an additional day of paid vacation, until the maximum number of days is reached at the conclusion of the 10th year of full time employment. The maximum number of vacation days is 20 paid days.
2. Educational Support Personnel Coordinators are granted 20 vacation days up front.
3. Employees are allowed 15 months from July 1st to use their vacation days. Vacation days are forfeited if not used within this 15 month period.

HOLIDAYS

All regular 12 month Educational Support Personnel are given the following holidays at full pay.

New Year's Eve
New Year's Day
Martin Luther King Day
President's Day
Good Friday
Memorial Day
Juneteenth
Fourth of July
Labor Day
Columbus Day
Election Day
Thanksgiving Day
Day after Thanksgiving
Christmas Eve
Christmas Day

1. If any of those days falls on a Saturday or Sunday, then the receding Friday or the following Monday will be declared as the holiday with full pay.
2. Educational Support Personnel employees who work 40 hours per week, 9-10 months per year, shall be paid for the holidays above at full pay if the holiday falls within the school year. This includes President's Day and excludes the Day after Thanksgiving.
3. Educational Support Personnel employees working 20-37.5 hours per week shall be paid for New Year's Day, Martin Luther King Day, President's Day, Good Friday, Memorial Day, Labor Day, Columbus Day, Thanksgiving Day, and Christmas Day.
4. Employees working less than 20 hours per week, substitutes, and seasonal employees, shall not qualify for paid holidays.
5. Any ESP employee whose presence is necessary because of an emergency or for the continued operation and maintenance of school facilities or property may be required by the District to work on any of the above legal or additional holidays and shall receive time and a half for the time worked.

PAID TIME OFF

SICK DAYS

Educational Support Personnel who are eligible to participate in IMRF are entitled to twelve (12) sick days each year with unlimited accumulation. As defined by law, sick days may be used for personal illness, quarantine at home, serious illness or death in the immediate family or household, birth, adoption, or placement for adoption. Sick days may also be used for scheduled doctor/dental appointments not available during non-working hours. Immediate family or household shall be defined as stated in the School Code, Section 24-6, which includes parents, spouse, brothers, sisters, children, grandchildren, grandparents, parents-in-law, sisters-in-law, brothers-in-law, and legal guardian.

An employee is expected to notify his/her Building Administrator or appropriate designee as soon as possible when sick. Normally, this means as soon as it is apparent that the employee will be unable to work. In the event the sick leave is known in advance and would exceed three (3) days, a medical excuse from a physician shall be presented in advance, if requested.

Employees may be requested to furnish medical certification as a basis for pay after any three (3) consecutive days of illness, or as otherwise necessary. Employees may also be required, at their own expense, to submit appropriate medical certification when requesting a leave of absence and upon return to employment following a disability leave. If the District requires a certificate during a leave of less than 3 days, it shall pay the expenses incurred by the employee.

The Board of Education may require medical certification as a basis for pay during leave after thirty (30) days of birth. For paid leave for adoption or placement for adoption, the Board of Education may require that the employee provide evidence that the formal adoption process is underway and such leave is limited to 30 days.

Under the *School Code*, the Board of Education is authorized to direct an employee, at District expense to undergo a physical examination by a physician who is licensed to practice medicine in all of its branches. The District shall pay for any such examinations.

BEREAVEMENT DAYS

Bereavement days for death in the immediate family will be granted with pay for Educational Support Personnel. This bereavement leave is limited to three (3) days. The immediate family includes parents, spouse, brothers, sisters, children, grandchildren, grandparents, parents-in-law, sisters-in-law, brothers-in-law, and legal guardian. Should additional time off be necessary for bereavement, accumulated sick days may be used.

PERSONAL DAYS

Three (3) days per year at full pay may be granted for urgent personal business with prior approval of the Building Administrator for ESP employees who are scheduled to

work at least four (4) days per week. ESP employees working three (3) days per week are granted two (2) personal business days per year. Employees working less than three (3) days a week will not be eligible for personal business days.

Unused personal business days will be added to accumulated sick leave if the employee is eligible for sick leave. No employee may take more than two (2) consecutive personal business leave days. No more than three (3) personal business leave days will be available in any given school year.

RELIGIOUS HOLIDAYS

ESP employees may request time off to observe a religious holiday if the employee gives at least five (5) days prior notice and the absence does not cause an undue hardship to the District. Employees may use vacation time or personal leave to be compensated for the absence, provided such time is consistent with the District's operational needs. A no pay day may also be used.

COURT DUTY

An ESP employee shall be paid full salary if absent because of jury duty or because an employee, pursuant to a subpoena issued by the clerk of a court and served on the employee, attends as a witness at trial or has his or her deposition taken in any school related matter pending in court. Employees will need to turn in any compensation received for jury duty or provided for complying with such subpoena. An employee must give at least five (5) days' prior notice of pending court duty or deposition to the District.

LEAVES OF ABSENCE

FAMILY AND MEDICAL LEAVE ACT (FMLA)

Cary School District 26 complies with the Family and Medical Leave Act (FMLA) and will grant up to 12 weeks of leave during a 12-month period to eligible employees.

In the event of any conflict between this guide and the applicable law, employees will be afforded all rights required by law. If you have any questions, concerns or disputes with this guide, please contact the Human Resources office.

ELIGIBILITY

To be eligible for FMLA, employees must meet the following requirements:

- Have worked at least twelve (12) months for Cary School District 26.
- Have worked at least 1,250 hours for Cary School District 26 over the twelve (12) months preceding the date the leave would commence.

REASON FOR LEAVE

To qualify as FMLA, the leave must be for one of the following reasons:

- The birth of a child or placement of a child with the employee for adoption or foster care.
- To care for a spouse, child or parent who has a serious health condition.

- For a serious health condition that makes the employee unable to perform the essential functions of his or her job.
- For any qualifying exigency arising out of the fact that a spouse, child or parent is a military member on covered active duty or on call to covered active duty status.
- To care for a covered service member with a serious injury or illness.

AMOUNT OF LEAVE

An eligible employee can take up to 12 weeks of FMLA leave during any 12-month period. The district will measure the 12-month period as a rolling 12-month period measured backward from the date an employee uses any leave under this guide. This period of twelve weeks may also be taken in a day-by-day fashion if this is recommended by the treating physician. In this case the employee would be eligible for up to 60 days of intermittent leave.

Eligible spouses who both work for the district may only take a combined total of 12 weeks of leave for the birth of a child, adoption or placement of a child in foster care, or to care for a parent (but not a parent "in-law") with a serious health condition.

For the birth, adoption or foster care of a child, the district and the employee must mutually agree to the schedule before the employee may take the leave intermittently or work a reduced-hour schedule. Leave for birth, adoption or foster care of a child must be taken within one year of the birth or placement of the child.

When leave is needed for planned medical treatment, the employee must make a reasonable effort to schedule treatment so as not to unduly disrupt the district's operations.

EMPLOYEE NOTICE REQUIREMENT

All employees requesting FMLA leave must provide written notice of the need for leave to the Superintendent and HR coordinator for the district. The district asks that the notification be sent as soon as possible when a leave must be taken so that alternate arrangements can be made for the buildings. Once the notice has been received the HR coordinator will reach out to the employee and guide them through the next steps in taking FMLA.

EMPLOYEE STATUS AND BENEFITS DURING LEAVE

Cary School District 26 will continue an employee's health benefits during the leave period at the same level and under the same conditions as if the employee was continuously at work.

While on paid leave, the employer will continue to make payroll deductions to collect the employee's share of insurance premiums. While on unpaid leave, the employee must continue to make this payment, either in person or by mail. If the payment is more than 30 days late, the employee's health care coverage may be dropped for the duration of the leave. The district will provide 15 days' notification prior to the employee's loss of coverage.

USE OF PAID AND UNPAID LEAVE

An employee who is taking FMLA leave because of the employee's own serious health condition or the serious health condition of a family member must use all paid vacation, personal or sick leave prior to being eligible for unpaid leave. Once all of the employee's paid time off has been used, the employee will not be paid for the remainder of their leave. Finance and HR will provide a statement to the employee that outlines the pay structure that the employee can expect during and after their FMLA is taken.

INTENT TO RETURN TO WORK FROM FMLA LEAVE

On a basis that does not discriminate against employees on FMLA leave, the district may require an employee on FMLA leave to report periodically on the employee's status and intent to return to work. An employee who takes leave under this guide may be asked to provide a fitness for duty clearance from a health care provider.

OTHER AUTHORIZED LEAVES

As required by federal and Illinois law, ESP employees may be afforded time off for purposes of service in the military (including Civil Air Patrol) and General Assembly, for school visitation, and for victims of domestic or sexual violence. Please contact the Human Resources department for further guidance regarding leaves.

DISCRETIONARY LEAVES

Requests for time off from work other than sick leave shall be granted at the discretion of the Superintendent; however, employees cannot expect to be paid for days they do not work, except as covered by sick or personal leave, or to engage in some activity as approved by the Superintendent.

POLICIES, RULES AND REGULATIONS

EQUAL EMPLOYMENT OPPORTUNITIES

The Board of Education of Cary Consolidated School District 26 is an equal employment opportunity employer.

Board Policy 5:10 provides equal employment opportunities to all persons regardless of their race, color, religion, creed, national origin, sex, sexual orientation, age, ancestry, marital status, arrest record, military status, or unfavorable military discharge, citizenship status, provided the individual is authorized to work in the United States, use of lawful products while not at work, being a victim of domestic or sexual violence, physical or mental handicap, or disability, if otherwise able to perform the essential functions of the job with reasonable accommodation, and other legally protected categories.

ESP employees who believe they have not received equal employment opportunities should report their claims to the District's Non-Discrimination Coordinator (Dr. Brian Coleman) or to the Complaint Managers for the District's Uniform Grievance Procedure (Dr. Brian Coleman and Dr. Jennifer Thomas).

ADA (AMERICANS WITH DISABILITY ACT) AND PREGNANCY ACCOMODATION

Employees who need reasonable accommodations to perform their job duties as a result of disability or pregnancy must notify the Human Resources Department. The District will evaluate the employee's request and determine, after communication with the employee, an effective reasonable accommodation, if possible.

DISCIPLINARY ACTIONS

Failure to comply with Board policies and administrative rules and procedures could result in an ESP's dismissal. The rules and regulations are as follows:

1. Reasonable directives issued by the employee's immediate supervisor are to be followed. Failure to comply with this directive is considered insubordination.
2. All duties as outlined in the job description for a position must be performed to the best of the employee's abilities.
3. If any employee commits theft, dismissal is to be effective immediately.
4. If any employee commits an immoral act, dismissal may be effective immediately.
5. Each employee must work cooperatively with other employees. The immediate supervisor is to determine whether or not the employee is complying with this regulation.
6. Each employee is to be punctual in reporting for duty. Repeated tardiness or non-excused absenteeism is considered grounds for dismissal.

In general, any action the consequence of which might result in harm to the District or its employees, or which interferes or tends to interfere with the rights or property of the District or its employees, may subject the offender to disciplinary actions.

The following rules are intended to provide a general guide to the type of conduct that may be considered sufficient grounds for disciplinary action for termination from employment. The disciplinary action, ranging from reprimand to immediate discharge will depend upon the circumstances of each case. Repeated violations of these rules may result in discharge even where separate offenses might be considered minor.

An ESP employee who commits any of the following violations of unacceptable work behavior will be subject to disciplinary action. The nature of the disciplinary action will depend on the seriousness of the offense, surrounding circumstances, and/or the prior work record of the employee involved.

1. Excessive absenteeism, tardiness, or leaving work before the end of the established work day without permission;

2. Leaving your building during working hours without prior approval of your supervisor;
3. Use of profanity or abusive language towards students, supervisors, employees, or any persons associated with the District.
4. Outside employment or activities which interfere with regular working hours or productivity;
5. Failure to obtain and maintain satisfactory productivity and quality of work;
6. Failure to comply with safety rules and common safety practices;
7. Failure to properly report an injury or accident or falsely claiming injury;
8. Willful, deliberate, or continued violation of, or disregard of, the rules and regulations;
9. Excessive unauthorized personal telephone calls on working time;
10. Failure to notify supervisor prior to start of work if unable to report to work;
11. Unauthorized commitment of District funds, resources, and facilities;
12. Failure to maintain confidentiality as required under the District's confidentiality statement and policies;
13. Unauthorized use of District equipment;
14. Making disparaging statements or spreading rumors which might harm the reputation of employees, students, parents, the District;
15. Violation of the District's Acceptable Use Guidelines for computer and telecommunications equipment;
16. Failure to file required reports on a timely basis; and
17. Online activity outside of the district that violates any of the above items including but not limited to; making disparaging statements or spreading rumors which might harm the reputation of employees, students, parents, the District, and/or posting sensitive or untrue information about the district or its staff and students.
18. Any other act deemed detrimental to the District.

Employees who commit any of the following acts, determined to be serious violations of acceptable work behavior, may be subject to immediate termination of the first offense.

1. Insubordination, refusal, or failure to obey instructions of your supervisor;
2. Consuming, possessing, or selling alcoholic beverages or products containing THC on District premises at any time;
3. Possessing or selling of controlled substances on District premises at any time;
4. Working or reporting to work under the influence of alcohol or controlled substance;
5. Theft, misuse, or unauthorized removal of District, student or employee property;
6. Possession of weapons or firearms on District premises;
7. Abuse, damage, or deliberate destruction of District or personal property;
8. Disorderly conduct on District property such as threatening, insulting or abusing any employee, student, parent or supervisor; and
9. Fighting or attempting bodily injury of a co-worker, student, parent or supervisor at any time on District premises.

MANDATED REPORTERS OF CHILD ABUSE

All District employees, including ESP staff, are mandated reporters under the Illinois *Abused and neglected Child Reporting Act*. A form acknowledging this legal obligation is required to be signed by every employee during the initial completion of pre-employment paperwork.

As a mandated reporter, any ESP employee who has reasonable cause to suspect, or receives knowledge that a student may be an abused or neglected child shall immediately report such a case to the Illinois Department of Children and Family Services (DCFS). The Employee must also promptly notify the Building Administrator that a report has been made.

SAFE SCHOOL ENVIRONMENT

Safety of students and staff is of the utmost priority. ESP employees are expected to notify their immediate supervisor should they notice any unsafe situation in classrooms, buildings and/or grounds, or any piece of equipment in need of repair.

BADGE AND KEY POLICY

Upon hire, new employees in the district may be issued an employee badge with building access and/or a set of keys for their classroom, building or bus. These items are the responsibility of the employee to keep secure and on their person during their work day.

In the event of separation, termination, or retirement, the badge and/or keys issued to the employee must be returned to the building administrator or the HR office before the employee's final day. If the badge or/keys have not been returned upon separation of employment, the district reserves the right to hold the individual financially responsible. Please reference the price chart below for replacement costs, if applicable.

In the event of loss or theft of a badge and/keys, district employees must notify the building administrator immediately. The building administrator shall notify the HR office promptly and provide details of the incident. The HR office will take immediate action to disable the reported badge and provide the instruction and documentation necessary for replacement.

Payment for lost or stolen items can be made via check, cash, or card directly to the finance office. If an employee refuses to make payment for these items the district reserves the right to deduct the cost of these items from the employee's last paycheck.

Charge for Lost or Missing Keys/ Badge

Badge \$10.00

Keys \$100.00 per lost key

CONFIDENTIALITY OF INFORMATION

ESP employees who have access to confidential District information are prohibited from disclosing such information unless necessary in the performance of their job duties. Confidential information includes students and personnel records and information discussed by the Board in executive session. Disclosure of confidential information shall be considered gross insubordination and may constitute grounds for termination from employment.

NON-TOXIC MATERIAL

The health and safety of students is a primary concern. Toxic material can be a detriment to their safety, as well as the safety of all District personnel. All media/material purchased for classroom and art purposes must be free of toxic and other chemicals that might harm students. When ordering material, look for the AP (Approved) label. The SP label implies that it is safe for children. If you have any questions, please see an administrator.

TOXIC SUBSTANCES DISCLOSURE

To comply with the provisions of the Illinois law entitled "Toxic Substances Disclosure Act", the Board of Education of District 26 has adopted Policy [4:160](#). Material Safety Data Sheets for toxic substances will be maintained in the Administration Center and a copy will be forwarded to each building using the related product.

ASBESTOS INFORMATION

For your information, AHERA laws require each school district to notify parents and employees of the presence of asbestos in its facilities and of its Plan of Management of

these areas to assure minimum risks and save conditions. The Environmental Protection Agency recommends a practical approach that protects public health by emphasizing that asbestos material in buildings should be located, and appropriately managed. District 26 maintains the health and safety of the children and employees by complying with the following requirements regarding asbestos management.

1. Asbestos Inspection Reports and Management Plans for Briargate School, Maplewood School, Oak Knoll and Prairie Hill School, have been approved by the Illinois Department of Public Health. Copies of these documents may be examined at the Administration Center and at each of the individual school offices.
2. Re-inspection of each District facility for which a plan is approved must be completed every three years.
3. District 26 has assigned David Shepherd, Director of Finance and Operations, as its designated person to monitor the management plans.

INTEGRATED PEST MANAGEMENT

Pests can best be controlled through an integrated pest management program that combines preventive techniques, non-chemical pest control, and the appropriate use of pesticides with preference for products that are the least harmful to human health and the environment. The program is done in compliance with the Integrated Pest Management protocol per the Illinois Department of Public Health. David Shepherd, Director of Finance and Operations, is assigned the responsibility of oversight of pest management practices. For more information, he can be contacted at 224-357-5104.

SMOKING ON SCHOOL PREMISES

Cary Community Consolidated School District 26 is a smoke-free environment. No one may smoke on any District property.

DRUG AND ALCOHOL FREE WORK PLACE

All District 26 workplaces are drug-and alcohol-free workplaces as required under Illinois and federal law and under Board Policy [5:50](#) (attached in Appendix). Employees are prohibited from violating these restrictions while on District premises or while performing work for the District.

All employees are prohibited from Unlawful manufacture, dispensing, distribution, possession, use, or being under the influence of a controlled substance while on District premises or while performing work for the District.

All ESP employees must notify his or her supervisor of his or her conviction under any criminal drug statute for a violation occurring on the District premises or while performing work for the District, no later than five (5) calendar days after such a conviction.

Violation of these prohibitions may result in disciplinary action, up to and including termination.

ETHICS AND GIFT BAN

All District 26 employees are expected to maintain high standard in their work relationships, to be considerate and cooperative, and to maintain professional relationships. As required under Illinois law and Board Policy [5:120](#), ESP employees must avoid participation in prohibited political activities or taking or receiving illegal gifts. No employee shall have any illegal conflict of interest in any contract, work, or business of the District, or in the sale of any article by or to the District.

Employees shall not engage in any other employment or in any private business during regular working hours. Employees are prohibited from using any District facilities, grounds, equipment, or materials for personal use or gain, for outside employment, or for any other activities unrelated to their job duties unless approve by the Superintendent.

EMPLOYEE HARASSMENT

District 26 (Board Policy [5:20](#)) prohibits any employee from discriminating against or harassing any employee or student on the basis of an individual's (or any individual with whom the employee associates) race, color, sex, religion, age, national origin, sexual orientation, ancestry, citizenship, marital status, disability, physical or mental handicap, military status, or unfavorable discharge from military service. The District does not condone and will not tolerate any unlawful harassment and will take direct and immediate action to prevent such behavior and to remedy all reported instances of unlawful harassment, sexual or otherwise.

PROHIBITED CONDUCT

1. Statutory Prohibitions: Harassment on the basis of one's race, color, sex, religion, age, national origin, sexual orientation, ancestry, citizenship, marital status, disability, physical or mental handicap, military status or unfavorable discharge from military service – or of those with whom the employee associates – may constitute discrimination in the terms and conditions of employment, and as such, may violate *Title VII of the Civil Rights Act of 1964*, the *Age Discrimination in Employment Act*, the *Rehabilitation Act of 1973*, the *Americans with Disabilities Act*, the *Illinois Human Rights Act*, and/or the *Immigration Reform and Control Act of 1986*.
2. Harassment: Unwelcome conduct may constitute harassment if it is directed at another individual on the basis of that individual's status as a member of, or association with, one of the protected groups listed above and has the purpose or effect of substantially interfering with the employee's professional performance or creating a hostile, intimidating or offensive working environment.
3. Sexual Harassment: Unwelcome sexual advances, requests for sexual favors, and other verbal or physical conduct of a sexual nature constitute sexual

harassment when:

- a. Submission to such conduct is made either explicitly or implicitly a term or condition of an employee's continued employment; or
 - b. Submission to or rejection of such conduct by an employee is used as the basis for employment or decisions affecting that employee; or
 - c. Such conduct has the purpose or effect of substantially interfering with the professional performance of the employee, or of creating an intimidating, hostile or offensive working environment.
4. Retaliation: Retaliating against an employee for resisting or reporting any harassment or for participating in an investigation or testifying regarding a claim of harassment is also prohibited activity or conduct. Retaliation may include, but is not limited to, retaliatory discipline, change of work assignments, or refusal to cooperate or discuss work-related matters.
5. Other: Intentionally pressuring or intimidating another employee with respect to claim of harassment, or falsely denying, lying about or otherwise covering up or attempting to cover up any behavior described in Board Policy 5:20 is prohibited conduct and will subject the employee to discipline. Also, an employee who is found to have filed a false and frivolous complaint shall be subject to discipline. However, a complaint shall not be considered false and frivolous solely because it is not proven, provided it was made in good faith.

Aggrieved persons who feel comfortable doing so should directly inform the person engaging in harassment that the conduct is offensive and must stop. Employees who believe they are victims of harassment are encouraged to discuss the matter with a Non-discrimination Coordinator (Brian Coleman) or a Complaint Manager (Brian Coleman or Jennifer Thomas), who will conduct an investigation if warranted. Employees may choose to report harassment to a person of the same sex. Complaints will be kept confidential to the extent possible given the need to investigate.

Any District employee who is determined, after an investigation, to have engaged in harassment will be subject to disciplinary action, up to and including discharge. Any person making a knowingly false accusation regarding harassment will likewise be subject to disciplinary action, up to and including discharge. However, employees who make good faith complaints will not be disciplined. Complaints should be filed as soon as possible, while facts are known and potential witnesses are available.

COMMUNICABLE DISEASE PRECAUTIONS PROCEDURE

These procedures are to be followed during any "blood spill" occurrences.

In the event that a person has an open wound that is bleeding, the following steps should be taken:

1. Whenever possible, the employee should be responsible in caring for his/her own

injuries, and a school nurse, principal, or health care professional should be summoned.

The individual treating the employee for an injury will put on gloves (vinyl or latex disposable) to prevent skin exposure when contact with blood or other bodily fluid is anticipated. If your skin surface becomes contaminated (with blood or other body fluid), wash your hands/skin immediately and notify the appropriate individuals.

2. In the event that the employee is not able to administer to his/her own wound/injury, the individual assisting the employee will use basic first aid procedures, or call for help as needed.

Disposable bloody materials (paper towels, gauze, tissue, etc.) can be discarded in any regular lined trash can unless saturated with blood to the point of dripping. If this is the case, use a red plastic bag (located in the Health Office).

Place contaminated laundry (towels, uniform) in separate plastic bag to be taken home and laundered by the employee.

3. Clean all blood contaminated surfaces and equipment with a one to ten (1-10) solution of bleach and water or appropriate disinfectant before activity resumes. Dispose of the paper towels (or whatever is used to clean) in a plastic bag.
4. Wash hands immediately after removing gloves. Place gloves in red plastic trash bag.
5. Saliva has not been identified as an HIV transmitter; however, disposable emergency mouth-to-mouth resuscitation equipment should be available for use to minimize the need for emergency mouth-to-mouth contact.
6. Employees with bleeding or oozing skin conditions should refrain from any direct student first aid care until the condition resolves.

Adapted from 4/99 Illinois High School Association (IHSA) guidelines

APPENDIX

Attachments:

1.	See Cary26.org	Evaluation Forms
2.	Policy 5:150	Personnel Records
3.	Policy 2:250	Access to District's Public Records
4.	Policy 5:290	Separation form Employment
5.	Policy 5:185	Family and Medical Leave
6.	Policy 5:10	Equal Employment Opportunity and Minority Recruitment
7.	Policy 4:160	Hazardous and Infectious Materials
8.	Policy 5:50	Drug and Alcohol-Free Workplace; Tobacco Prohibition
9.	Policy 5:120	Ethics and Gift Ban (Personnel)
10.	Policy 5:20	Workplace Harassment Prohibited

Personnel

Personnel Records

The District maintains a complete personnel record for every current employee and former employee. The employees' personnel records shall be maintained in the District's administrative office, under the Superintendent's direct supervision.

Maintenance and Access to Records

The Superintendent or designee shall manage the maintenance of personnel records in accordance with State and federal law and School Board policy. Records, as determined by the Superintendent, are retained for all employment applicants, employees, and former employees given the need for the District to document employment-related decisions, evaluate program and staff effectiveness, and comply with government recordkeeping and reporting requirements. Personnel records shall be maintained in the District's administrative office, under the Superintendent's direct supervision.

Access to personnel records is available as follows:

1. An employee will be given access to his or her personnel records according to State law and guidelines developed by the Superintendent.
2. An employee's supervisor or other management employee who has an employment or business-related reason to inspect the record is authorized to have access.
3. Anyone having the respective employee's written consent may have access.
4. Access will be granted to anyone authorized by State or federal law to have access.
5. All other requests for access to personnel information are governed by Board policy 2:250, *Access to District Public Records*.

Prospective Employer Inquiries Concerning a Current or Former Employee's Job Performance

The Superintendent or designee shall manage a process for responding to inquiries by a prospective employer concerning a current or former employee's job performance. The Superintendent shall:

1. Execute the requirements in the Abused and Neglected Child Reporting Act whenever another school district asks for a reference concerning an applicant who is or was a District employee and was the subject of a report made by a District employee to Ill. Dept. of Children and Family Services (DCFS); and
2. Comply with the federal law prohibiting the District from providing a recommendation of employment for an employee, contractor, or agent that District knows, or has probable cause to believe, has engaged in sexual misconduct with a student or minor in violation of the law, but the Superintendent or designee may follow routine procedures regarding the transmission of administrative or personnel files for that employee.

When requested for information about an employee by an entity other than a prospective employer, the District will only confirm position and employment dates unless the employee has submitted a written request to the Superintendent or designee.

REVISED: April 21, 2008
 March 21, 2011
 July 27, 2020
 February 28, 2022

School Board

Access to District's Public Records

Full access to the District's public records is available to any person as provided in the Illinois Freedom of Information Act (FOIA), this policy, and implementing procedures. The Superintendent or designee shall: (1) provide the Board with sufficient information and data to permit the Board to monitor the District's compliance with FOIA and this policy, and (2) report any FOIA requests during the Board's regular meetings along with the status of the District's response.

Freedom of Information Officer

The Superintendent shall serve as the District's Freedom of Information Officer and assumes all the duties and powers of that office as provided in FOIA and this policy. The Superintendent may delegate these duties and powers to one or more designees, but the delegation shall not relieve the Superintendent of the responsibility for the action that was delegated.

Definition

The District's public records are defined as records, reports, forms, writings, letters, memoranda, books, papers, maps, photographs, microfilms, cards, tapes, recordings, electronic data processing records, electronic communications, recorded information and all other documentary material pertaining to the transaction of public business, regardless of physical form or characteristics having been prepared by or for, or having been or being used by, received by, in possession of, or under the control of the School District.

Requesting Records

A request for inspection and/or copies of public records must be made in writing and may be submitted by personal delivery, mail, telefax, or email directed to the District's Freedom of Information Officer. Individuals making a request are not required to state a reason for the request other than to identify when the request is for a commercial purpose or when requesting a fee waiver. The Superintendent or designee shall instruct District employees to immediately forward any request for inspection and copying of a public record to the District's Freedom of Information Officer or designee.

Responding to Requests

The Freedom of Information Officer shall approve all requests for public records unless:

1. The requested material does not exist;
2. The requested material is exempt from inspection and copying by the Freedom of Information Act;
3. Complying with the request would be unduly burdensome.

Within 5 business days after receipt of a request for access to a public record, the Freedom of Information Officer shall comply with or deny the request, unless the time for response is extended as specified in Section 3 of FOIA. The Freedom of Information Officer may extend the time for a response for up to 5 business days from the original due date. If an extension is needed, the Freedom of Information Officer shall: (1) notify the person making the request of the reason for the extension, and (2) either inform the person of the date on which a response will be made, or agree with the person in writing on a compliance period.

The time periods are extended for responding to requests for records made for commercial purpose, requests by a recurrent requester, or voluminous requests, as those terms are defined in Section 2 of FOIA. The time periods for responding to those requests are governed by Sections 3.1, 3.2 and 3.6 of FOIA.

When responding to a request for a record containing both exempt and non-exempt material, the Freedom of Information Officer shall redact exempt material from the record before complying with the request.

Fees

Persons making a request for copies of public records must pay any and all applicable fees. The Freedom of Information Officer shall establish a fee schedule that complies with FOIA and this policy and is subject to the Board's review. The fee schedule shall include copying fees and all other fees to the maximum extent they are permitted by FOIA, including without limitation, search and review fees for responding to a request for a commercial purpose and fees, costs, and personnel hours in connection with responding to a voluminous request.

Copying fees, except when filed by statute, shall be reasonably calculated to reimburse the District's actual cost for reproducing and certifying public records and for the use, by any person, of its equipment to copy records. In no case shall the copying fees exceed the maximum fees permitted by FOIA. If the District's actual copying costs are equal to or greater than the maximum fees permitted by FOIA, the Freedom of Information Officer is authorized to use FOIA's maximum fees as the District's fees. No copying fees shall be charged for; (1) the first 50 pages of black and white, letter or legal sized copies, or (2) electronic copies other than the actual cost of the recording medium, except if the response is to a voluminous request, as defined in FOIA.

A fee reduction is available if the request qualifies under Section 6 of FOIA. The Freedom of Information Officer shall set the amount of the reduction taking into consideration the amount of material requested and the cost of copying it.

Provision of Copies and Access to Records

A public record that is the subject of an approved access request will be available for inspection or copying at the District's administrative office during regular business hours, unless other arrangements are made by the Freedom of Information Officer.

Many public records are immediately available from the District's website including, but not limited to, the process for requesting a public record. The Freedom of Information Officer shall direct a requestor to the District's website if a requested record is available there. If the requester is unable to reasonably access the record online, he or she may resubmit the request for the record, stating his or her inability to reasonably access the record online, and the District shall make the requested record available for inspection and copying as otherwise provided in this policy.

Preserving Public Records

Public records, including email messages, shall be preserved and cataloged if: (1) they are evidence of the District's organization, function, policies, procedures, or activities, (2) they contain informational data appropriate for preservation, (3) their retention is required by State or federal law, or (4) they are subject to a retention request by the Board Attorney (e.g., a litigation hold), District auditor, or other individual authorized by the School Board or State or federal law to make such a request. Unless its retention is required as described in items numbered 3 or 4 above, a public record, as defined by the Illinois Local Records Act, may be destroyed when authorized by the Local Records Commission.

REVISED: December 15, 2008
 February 22, 2010
 September 24, 2012
 February 25, 2013
 May 20, 2013
 September 28, 2015

Personnel

Employment Termination and Suspensions

Resignation and Retirement

An employee is requested to provide two weeks' notice of a resignation. A resignation notice cannot be revoked once given. An employee planning to retire should notify his or her supervisor at least two months before the retirement date.

Non-RIF Dismissal

The District may terminate an at-will employee at any time for any or no reason, but not for a reason prohibited by State or federal law.

Employees who are employed annually or have a contract, or who otherwise have a legitimate expectation of continued employment, may be dismissed: (1) at the end of the school year or at the end of their respective contract after being provided appropriate notice and after compliance with any applicable contractual provisions, or (2) mid-year or mid-contract provided appropriate due process procedures are provided.

The Superintendent is responsible for making dismissal recommendations to the School Board consistent with the Board's goal of having a highly qualified, high performing staff. This includes recommending a non-licensed employee for immediate dismissal for willful or negligent failure to report an instance of suspected child abuse or neglect as required by 325 ILCS 5/.

Reduction in Force and Recall

The Board may, as necessary or prudent, decide to decrease the number of educational support personnel or to discontinue some particular type of educational support service and, as a result of that action, dismiss or reduce the hours of one or more educational support employees. When making decisions concerning reduction in force and recall, the Board will follow Sections 10-22.34c (outsourcing non-instructional services) and 10-23.5 (procedures) of the School Code, to the extent they are applicable and not superseded by legislation or an applicable collective bargaining agreement.

Final Paycheck

A terminating employee's final paycheck will be adjusted for any unused, earned vacation credit. Employees are paid for all earned vacation. Terminating employees will receive their final pay on the next regular payday following the date of termination, except that an employee dismissed due to a reduction in force shall receive his or her final paycheck on or before the next regular pay date following the last day of employment.

Suspension

Except as provided below, the Superintendent is authorized to suspend an employee without pay as a disciplinary measure, during an investigation into allegations of misconduct or pending a dismissal hearing whenever, in the Superintendent's judgment, the employee's presence is detrimental to the District. A disciplinary suspension shall be with pay: (1) when the employee is exempt from the overtime provisions, or (2) until an employee with an employment contract for a definite term is provided a notice and hearing according to the suspension policy for professional employees. Upon receipt of a recommendation from the Ill. Dept. Children and Family Services (DCFS) that the District remove an employee from his or her position when he or she is the subject of a pending DCFS investigation that relates to his or her employment with the District, the Board or Superintendent or designee, in consultation with the Board Attorney, will determine whether to:

1. Let the employee remain in his or her position pending the outcome of the investigation; or
2. Remove the employee as recommended, proceeding with:

- a. A suspension with pay; or
- b. A suspension without pay.

Any criminal conviction resulting from the investigation or allegations shall require the employee to repay to the District all compensation and the value of all benefits received by the employee during the suspension. The Superintendent will notify the employee of this requirement when the employee is suspended.

REVISED: April 21, 2008
 May 23, 2011
 February 26, 2018
 January 27, 2020

Personnel

Family and Medical Leave

Leave Description

Eligible employees may use unpaid family and medical leave (FMLA leave), guaranteed by the federal Family and Medical Leave Act. The U.S. Department of Labor's rules (federal rules) implementing FMLA, as they may be amended from time to time, control FMLA leave. A year is the 12 month cycle beginning on the first day of the employee's leave and ending on the day prior to the anniversary date of the leave.

During a single 12-month period, an eligible employee's FMLA leave entitlement may be extended to a total of 26 weeks of unpaid leave to care for a covered service member (defined in the federal rules) with a serious injury or illness. The "single 12-month period" is measured forward from the date the employee's first FMLA leave to care for the covered service member begins.

While FMLA leave is normally unpaid, the District will substitute an employee's accrued compensatory time-off and/or paid leave for unpaid FMLA leave provided such leave is available for use in accordance with Board policies and rules. In addition, all policies and rules regarding the use of paid leave apply when paid leave is substituted for unpaid FMLA leave all policies and rules regarding the use of paid leave apply when paid leave substituted for unpaid FMLA leave. Any substitution of paid leave for unpaid FMLA leave will count against the employee's FMLA leave entitlement. Use of FMLA leave shall not preclude the use of other applicable unpaid leave that will extend the employee's leave beyond 12 weeks, provided that the use of FMLA leave shall not serve to extend such other unpaid leave. Any full workweek period during which the employee would not have been required to work including summer break and winter break, is not counted against the employee's FMLA leave entitlement.

FMLA leave is available in one or more of the following instances:

1. The birth and first-year care of a son or daughter;
2. The adoption or foster placement of a son or daughter, including absences from work that are necessary for the adoption of foster care to proceed and expiring at the end of the 12-month period beginning on the placement date.
3. The serious health condition of an employee's spouse, child, or parent
4. The employee's own serious health condition that makes the employee unable to perform the functions of his or her job.
5. The existence of a qualifying exigency arising out of the fact that the employee's spouse, child, or parent is a military member on covered active duty or has been notified of an impending call or order to active duty, as provided in federal rules.
6. To care for the employee's spouse, child, parent, or next of kin who is a covered service member with a serious injury or illness.

If spouses are employed by the District, they may together take only 12-weeks for FMLA leaves when the reason for the leave is 1 or 2, above, or to care for a parent with a serious health condition, or a combined total of 26 weeks for item 6 or 7.

An employee may be permitted to work on an intermittent or reduced-leave schedule in accordance with federal rules.

Eligibility

To be eligible for FMLA leave, an employee must be employed at a worksite where at least 50 employees are employed within 75 miles. In addition, one of the following provisions must describe the employee:

1. The employee has been employed by the District for at least 12 months and has been employed for at least **1,000** hours of service during the 12-month period immediately before the beginning of the leave. The 12 months an employee must have been employed by the District need not be consecutive. However, the District will not consider any period of previous employment that occurred more than seven years before the date of the most recent hiring, except when the service break is due to fulfillment of a covered service obligation under the employee's Uniformed Services Employment and Reemployment Rights Act (USERRA), 38 U.S.C. 4301, et seq. or when a written agreement exists concerning the District's intention to rehire the employee.
2. The employee is a full-time classroom teacher.

Requesting Leave

If the need for the FMLA leave is foreseeable, an employee must provide the Superintendent or designee with at least 30 days' advance notice before the leave is to begin. If 30 days' advance notice is not practicable, the notice must be given as soon as practicable. The employee shall make a reasonable effort to schedule a planned medical treatment so as not to disrupt the District's operations, subject to the approval of the health care provider administering the treatment. The employee shall provide at least verbal notice sufficient to make the Superintendent or designee aware that he or she needs FMLA leave, and the anticipated timing and duration of the leave. Failure to give the required notice for a foreseeable leave may result in a delay in granting the requested leave until at least 30 days after the date of employee provides notice.

Certification

Within 15 calendar days after the Superintendent or designee makes a request for certification for a FMLA leave, an employee must provide one of the following:

1. When the leave is to care for the employee's covered family member with a serious health condition, the employee must provide a complete and sufficient certificate signed by the family member's health care provider.
2. When the leave is due to employee's own serious health condition, the employee must provide a complete and sufficient certificate signed by the employee's health care provider.
3. When the leave is to care for a covered service member with a serious illness or injury, the employee must provide a complete and sufficient certificate signed by an authorized health care provider for the covered service member.
4. When the leave is because of a qualified exigency, the employee must provide: (a) a copy of the covered military member's active duty orders or other documentation issued by the military indicating that the military member is on active duty or call to active duty status, and the dates of the covered military member's active duty service, and (b) a statement or description, signed by the employee of appropriate facts regarding the qualifying exigency for which FMLA leave is requested.

The District may require an employee to obtain a second and third opinion at its expense when it has reason to doubt the validity of a medical certification.

The District may require recertification at reasonable intervals, but not more often than once every 30 days. Regardless of the length of time since the last request, the District may request recertification when

the, (1) employee requests a leave extension, (2) circumstances described by the original certification change significantly, or (3) District receives information that casts doubt upon the continuing validity of the original certification. Recertification is at the employee's expense and must be provided to the District within 15 calendar days after the request. The District may request recertification every six months in connection with any absence by an employee needing an intermittent or reduced schedule leave for conditions with a duration in excess of six months.

Failure to furnish a complete and sufficient certification on forms provided by the District may result in a denial of the leave request.

Continuation of Health Benefits

During FMLA leave, employees are entitled to continuation of health benefits that would have been provided if they were working. Any share of health plan premiums being paid by the employee before taking the leave, must continue to be paid by the employee during the FMLA leave. A District's obligation to maintain health insurance coverage ceases if an employee's premium payment is more than 30 days late and the District notifies the employee at least 15 days before coverage will cease.

Changed Circumstances and Intent to Return

An employee must provide the Superintendent or designee reasonable notice of changed circumstances (i.e. within two business days if the changed circumstances are foreseeable) that will alter the duration of the FMLA leave. The Superintendent or designee, taking into consideration all of the relevant facts and circumstances related to an individual's leave situation, may ask an employee who has been on FMLA leave for eight consecutive weeks whether he or she intends to return to work.

Return to Work

If returning from FMLA leave occasioned by the employee's own serious health condition, the employee is required to obtain a present certification from the employee's health care provider that he or she is able to resume work.

An employee returning from FMLA leave will be given an equivalent position to his or her position before the leave, subject to: (1) permissible limitations the District may impose as provided in the FMLA or implementing regulations, and (2) the District's reassignment policies and practices.

Classroom teachers may be required to wait to return to work until the next semester in certain situations as provided by the FMLA regulations.

Implementation

The Superintendent or designee shall ensure that: (1) all required notices and responses to leave requests are provided to employees in accordance with the FMLA; and (2) this policy is implemented in accordance with the FMLA. In the event of a conflict between the policy and the FMLA or its regulations the latter shall control. The terms used in this policy shall be defined as in the FMLA regulations.

End of Academic Term

If an eligible employee is employed principally in an instructional capacity and begins family and medical leave:

1. More than five weeks prior to the end of the academic year, the Administration may require the leave to extend to the end of the academic term if the leave is of at least three weeks duration and the return to employment would occur within three weeks of the end of the academic term; or

2. Less than five weeks prior to the end of the academic term, and the leave is for a purpose other than the employee's own serious health condition, the Administration may require the leave to extend to the end of the academic term if the leave is of at least two weeks duration and the return to employment would occur within two weeks of the end of the academic term; or
3. Less than three weeks prior to the end of the academic term, and the leave is for a purpose other than the employee's own serious health condition, the Administration may require the leave to extend to the end of the term if it is greater than five working days.

REVISED: March 21, 2011
 January 26, 2015
 December 12, 2016
 March 20, 2017
 February 28, 2022

Personnel

Equal Employment Opportunity and Minority Recruitment

The School District shall provide equal employment opportunities to all persons regardless of their race; color; creed; religion; national origin; sex; sexual orientation; age; ancestry; marital status; arrest record; military status; order of protection status; unfavorable military discharge; citizenship status provided the individual is authorized to work in the United States; work authorization status; use of lawful products while not at work; being a victim of domestic violence, sexual violence, gender violence, or any other crime of violence; genetic information; physical or mental handicap or disability, if otherwise able to perform the essential functions of the job with reasonable accommodation; pregnancy, childbirth, or related medical conditions; credit history, unless a satisfactory credit history is an established bona fide occupational requirement of a particular position; conviction record, unless authorized by law; or other legally protected categories. No one will be penalized solely for his or her status as a registered qualifying patient or a registered designated caregiver for purposes of the Compassionate Use of Medical Cannabis Program Act, 410 ILCS 130/.

Persons who believe they have not received equal employment opportunities should report their claims to the Nondiscrimination Coordinator and/or a Complaint Manager for the Uniform Grievance Procedure. These individuals are listed below. No employee or applicant will be discriminated or retaliated against because he or she: (1) requested, attempted to request, used, or attempted to use a reasonable accommodation as allowed by the Illinois Human Rights Act, or (2) initiated a complaint, was a witness, supplied information, or otherwise participated in an investigation or proceeding involving an alleged violation of this policy or State or federal laws, rules or regulations, provided the employee or applicant did not make a knowingly false accusation nor provide knowingly false information.

Administrative Implementation

The Superintendent shall appoint a Nondiscrimination Coordinator for personnel who shall be responsible for coordinating the District's nondiscrimination efforts. The Nondiscrimination Coordinator may be the Superintendent or a Complaint Manager for the Uniform Grievance Procedure. The Nondiscrimination Coordinator also serves as the District's Title IX Coordinator.

The Superintendent shall insert into this policy the names, office addresses, email addresses, and telephone numbers of the District's current Nondiscrimination Coordinator and Complaint Managers.

Nondiscrimination Coordinator:

Name	<u>Dr. Brian Coleman</u>
Address	<u>Cary School District 26 –</u> <u>Administration Center</u> <u>2115 Crystal Lake Road</u> <u>Cary, IL 60013</u>
Email	<u>brian.coleman@cary26.org</u>
Telephone No.	<u>224-357-5100</u>

Complaint Managers:

Name	<u>Dr. Jennifer Thomas</u>	<u>Mr. Brian DeRoo</u>
Address	<u>Cary School District 26 – Administration Center</u>	<u>Cary School District 26 – Administration Center</u>
	<u>2115 Crystal Lake Road</u>	<u>2115 Crystal Lake Road</u>
	<u>Cary, IL 60013</u>	<u>Cary, IL 60013</u>
Email	<u>jennifer.thomas@cary26.org</u>	<u>brian.deroo@cary26.org</u>
Telephone No.	<u>224-357-5100</u>	<u>224-357-5100</u>

The Superintendent shall also use reasonable measures to inform staff members and applicants that the District is an equal opportunity employer, such as, by posting required notices and including this policy in the appropriate handbooks.

Minority Recruitment

The District will attempt to recruit and hire minority employees. The implementation of this policy may include advertising openings in minority publications, participating in minority job fairs, and recruiting at colleges and universities with significant minority enrollments. This policy, however, does not require or permit the District to give preferential treatment or special rights based on a protected status without evidence of past discrimination.

REVISED: July 16, 2007
 December 17, 2007
 April 23, 2012
 April 28, 2014
 January 26, 2015
 March 18, 2019
 January 27, 2020
 August 24, 2020
 September 27, 2021
 February 28, 2022

General Personnel

Drug and Alcohol-Free Workplace; E-Cigarette, Tobacco, and Cannabis Prohibition

All District workplaces are drug- and alcohol-free workplaces.

All employees are prohibited from engaging in any of the following activities while on District premises or while performing work or being *on call* for the District:

1. Unlawful manufacture, dispensing, distribution, possession, or use of an illegal or controlled substance.
2. Distribution, consumption, use, possession, or being impaired by or under the influence of an alcoholic beverage; being present on District premises or while performing work for the District when alcohol consumption is detectable, regardless of when and/or where the use occurred.
3. Distribution, consumption, possession, use, or being impaired by or under the influence of cannabis; being present on District premises or while performing work for the District when impaired by or under the influence of cannabis, regardless of when and/or where the use occurred, unless distribution, possession, and/or use is by a school nurse or school administrator pursuant to *Ashley's Law*, 105 ILCS 5/22-33. The District considers employees impaired by or under the influence of cannabis when there is a good faith belief that an employee manifests specific articulable symptoms while working that decrease or lessen the employee's performance of the duties or tasks of the employee's job position.

Upon the Superintendent or designee's reasonable suspicion of an employee's violation of any of the prohibited activities stated above, the Superintendent or designee may direct the employee to undergo a drug and/or alcohol test to corroborate or refute the alleged violation. State law protects the District from liability when it takes actions pursuant to a reasonable workplace drug policy, including but not limited to subjecting an employee or applicant to reasonable drug and alcohol testing, reasonable and nondiscriminatory random drug testing, discipline, termination of employment, or withdrawal of a job offer due to a failure of a drug test.

For purposes of this policy, a controlled substance means a substance that is:

1. Not legally obtainable,
2. Being used in a manner different than prescribed,
3. Legally obtainable, but has not been legally obtained, or
4. Referenced in federal or State controlled substance acts.

For purposes of this policy, *District premises* means workplace as defined in the Cannabis Regulation and Tax Act (CRTA) in addition to District and school buildings, grounds, and parking areas; vehicles used for school purposes; and any location used for a School Board meeting, school athletic event, or other school-sponsored or school-sanctioned events or activities. *School grounds* means the real property comprising any school, any conveyance used to transport students to school or a school-related activity, and any public way within 1,000 feet of any school ground, designated school bus stops where students are waiting for the school bus, and school-sponsored or school-sanctioned events or activities. "Vehicles used for school purposes" means school buses or other school vehicles.

As a condition of employment, each employee shall:

1. Abide by the terms of this Board policy respecting a drug-free workplace; and
2. Notify his or her supervisor of his or her conviction under any criminal drug statute for a violation occurring on the District premises or while performing work for the District, no later than five calendar days after such a conviction.

Unless otherwise prohibited by this policy, prescription and over-the-counter medications are not prohibited when taken in standard dosages and/or according to prescriptions from the employee's licensed health care provider, provided that an employee's work performance is not impaired.

To make employees aware of the dangers of drug and alcohol abuse, the Superintendent or designee shall perform each of the following:

1. Provide each employee with a copy of this policy.
2. Post notice of this policy in a place where other information for employees is posted.
3. Make available materials from local, State, and national anti-drug and alcohol-abuse organizations.
4. Enlist the aid of community and State agencies with drug and alcohol informational and rehabilitation programs to provide information to District employees.
5. Establish a drug-free awareness program to inform employees about:
 - a. The dangers of drug abuse in the workplace,
 - b. Available drug and alcohol counseling, rehabilitation, re-entry, and any employee assistance programs, and
 - c. The penalties that the District may impose upon employees for violations of this policy.
6. Remind employees that policy 6:60, *Curriculum Content*, requires the District to educate students, depending upon their grade, about drug and substance abuse prevention and relationships between drugs, alcohol, and violence.

E-Cigarette, Tobacco, and Cannabis Prohibition

All employees are covered by the conduct prohibitions contained in policy 8:30, *Visitors to and Conduct on School Property*. The prohibition on the use of e-cigarettes, tobacco, and cannabis products applies both (1) when an employee is on school property, and (2) while an employee is performing work for the District at a school event regardless of the event's location.

Tobacco has the meaning provided in 105 ILCS 5/10-20.5b.

Cannabis has the meaning provided in the CRTA, 410 ILCS 705/1-10.

E-Cigarette is short for electronic cigarette and includes, but is not limited to, any electronic nicotine delivery system (ENDS), electronic cigar, electronic cigarillo, electronic pipe, electronic hookah, vape pen, or similar product or device, and any components or parts that can be used to build the product or device.

District Action Upon Violation of Policy

An employee who violates this policy may be subject to disciplinary action, including termination. In addition or alternatively, the Board may require an employee to successfully complete an appropriate drug-or alcohol-abuse rehabilitation program.

The Board shall take disciplinary action with respect to an employee convicted of a drug offense in the workplace within 30 days after receiving notice of the conviction.

Should District employees be engaged in the performance of work under a federal contract or grant, or under a State contract or grant of \$5,000 or more, the Superintendent shall notify the appropriate State or federal agency from which the District receives contract or grant monies of the employee's conviction within 10 days after receiving notice of the conviction.

Disclaimer

The Board reserves the right to interpret, revise or discontinue any provision of this policy pursuant to the **Suspension of Policies** subhead in policy 2:240, *Board Policy Development*.

REVISED: April 29, 2013
 February 24, 2014
 December 14, 2015
 January 27, 2020
 February 28, 2022

Personnel

Professional and Appropriate Conduct

All District employees are expected to maintain high standards in their school relationships, to demonstrate integrity and honesty, to be considerate and cooperative, and to maintain professional and appropriate relationships with students, parents, staff members, and others. In addition, the Code of Ethics for Illinois Educators, adopted by the Illinois State Board of Education, is incorporated by reference into this policy. Any employee who sexually harasses a student, willfully or negligently fails to report an instance of suspected child abuse or neglect as required by the Abused and Neglected Child Reporting Act (325 ILCS 5/), engages in *grooming* as defined in 720 ILCS 5/11-25, engages in grooming behaviors, violates boundaries for appropriate school employee-student conduct, or otherwise violates an employee conduct standard will be subject to discipline up to and including dismissal.

The Superintendent or designee shall identify appropriate employee conduct standards and provide them to all District employees. Standards related to school employee-student conduct shall, at a minimum:

1. Incorporate the prohibitions noted in paragraph 1 of this policy;
2. Define prohibited grooming behaviors to include, at a minimum, *sexual misconduct*. *Sexual misconduct* is (i) any act, including but not limited to, any verbal, nonverbal, written, or electronic communication or physical activity, (ii) by an employee with direct contact with a student, (iii) that is directed toward or with a student to establish a romantic or sexual relationship with the student. Examples include, but are not limited to:
 - a. A sexual or romantic invitation
 - b. Dating or soliciting a date
 - c. Engaging in sexualized or romantic dialog
 - d. Making sexually suggestive comments that are directed toward or with a student
 - e. Self-disclosure or physical exposure of a sexual, romantic, or erotic nature
 - f. A sexual, indecent, romantic, or erotic contact with the student
3. Identify expectations for employees to maintain professional relationships with students, including expectations for employee-student boundaries based upon students' ages, grade levels, and developmental levels. Such expectations shall establish guidelines for specific areas, including but not limited to:
 - a. Transporting a student
 - b. Taking or possessing a photo or video of a student
 - c. Meeting with a student or contacting a student outside the employee's professional role
4. Reference employee reporting requirements of the Abused and Neglected Child Reporting Act (325 ILCS 5/), Title IX of the Education Amendments of 1972 (20 U.S.C. §1681 et seq.), and the Elementary and Secondary Education Act (20 U.S.C. § 7926);
5. Outline how employees can report prohibited behaviors and/or boundary violations pursuant to Board policies 2:260, *Uniform Grievance Procedure*; 2:265, *Title IX Sexual Harassment Grievance Procedure*; and 5:90, *Abused and Neglected Child Reporting*; and
6. Reference required employee training related to educator ethics, child abuse, grooming behaviors, and boundary violations as required by law and policies 2:265, *Title IX Sexual Harassment*

Grievance Procedure; 4:165, Awareness and Prevention of Child Sexual Abuse and Grooming Behaviors; 5:90, Abused and Neglected Child Reporting; and 5:100, Staff Development Program.

Statement of Economic Interests

The following employees must file a *Statement of Economic Interests* as required by the Ill. Governmental Ethics Act:

1. Superintendent;
2. Building Principal;
3. Head of any department;
4. Any employee who, as the District's agent, is responsible for negotiating one or more contracts including collective bargaining agreement(s), in the amount of \$1,000 or greater;
5. Hearing officer;
6. Any employee having supervisory authority for 20 or more employees; and
7. Any employee in a position that requires an administrative or a chief school business official endorsement.

Ethics and Gift Ban

School Board policy 2:105, *Ethics and Gift Ban*, applies to all District employees. Students shall not be used in any manner for promoting a political candidate or issue.

Prohibited Interests; Conflict of Interest; and Limitation of Authority

In accordance with Section 22-5 of the School Code, "no school officer or teacher shall be interested in the sale, proceeds, or profits of any book, apparatus, or furniture used or to be used in any school with which such officer or teacher may be connected," except when the employee is the author or developer of instructional materials listed with the Illinois State Board of Education and adopted for use by the Board. An employee having an interest in instructional materials must file an annual statement with the Board Secretary.

For the purpose of acquiring profit or personal gain, no employee shall act as an agent of the District nor shall an employee act as an agent of any business in any transaction with the District. This includes participation in the selection, award or administration of a contract supported by a federal award or State award governed by the Grant Accountability and Transparency Act (GATA) (30 ILCS 708/) when the employee has a real or apparent conflict of interest. A conflict of interest arises when an employee or any of the following individuals has a financial or other interest in the entity selected for the contract:

1. Any person that has a close personal relationship with an employee that may compromise or impair the employee's fairness and impartiality, including a member of the employee's immediate family or household;
2. An employee's business partner; or
3. An entity that employs or is about to employ the employee or one of the individuals listed in one or two above.

Employees shall neither solicit nor accept gratuities, favors, or anything of monetary value from contractors, potential contractors, or parties to agreements or contracts. Situations in which the interest is not substantial or the gift is an unsolicited item of nominal value must comply with State law and Board policy 2:105, *Ethics and Gift Ban*.

Outside Employment

Employees shall not engage in any other employment or in any private business during regular working hours or at such other times as are necessary to fulfill appropriate assigned duties.

REVISED: March 21, 2011
 June 25, 2012
 September 28, 2015
 June 26, 2017
 January 27, 2020
 February 28, 2022

Personnel

Workplace Harassment Prohibited

The School District expects the workplace environment to be productive, respectful, and free of unlawful discrimination, including harassment. District employees shall not engage in harassment or abusive conduct on the basis of an individual's actual or perceived race, color, religion, national origin, ancestry, sex, sexual orientation, age, citizenship status, work authorization status, disability, pregnancy, marital status, order of protection status, military status, or unfavorable discharge from military service, nor shall they engage in harassment or abusive conduct on the basis of an individual's other protected status identified in Board policy 5:10, *Equal Employment Opportunity and Minority Recruitment*. Harassment of students, including, but not limited to, sexual harassment, is prohibited by Board policies 2:260, *Uniform Grievance Procedure*; 2:265, *Title IX Sexual Harassment Grievance Procedure*; 7:20, *Harassment of Students Prohibited*; 7:180, *Prevention of and Response to Bullying, Intimidation, and Harassment*; and 7:185, *Teen Dating Violence Prohibited*.

The District will take remedial and corrective action to address unlawful workplace harassment, including sexual harassment.

Sexual Harassment Prohibited

The District shall provide a workplace environment free of verbal, physical, or other conduct or communications constituting harassment on the basis of sex as defined and otherwise prohibited by State and federal law. The District provides annual sexual harassment prevention training in accordance with State law.

District employees shall not make unwelcome sexual advances or request sexual favors or engage in any unwelcome conduct of a sexual nature when: (1) submission to such conduct is made either explicitly or implicitly a term or condition of an individual's employment; (2) submission to or rejection of such conduct by an individual is used as the basis for employment decisions affecting such individual; or (3) such conduct has the purpose or effect of substantially interfering with an individual's work performance or creating an intimidating, hostile, or offensive working environment. Sexual harassment prohibited by this policy includes, but is not limited to, verbal, physical, or other conduct. The terms intimidating, hostile, or offensive include, but are not limited to, conduct that has the effect of humiliation, embarrassment, or discomfort. Sexual harassment will be evaluated in light of all the circumstances.

Making a Report or Complaint

Employees and *nonemployees* (persons who are not otherwise employees and are directly performing services for the District pursuant to a contract with the District, including contractors, and consultants) are encouraged to promptly report information regarding violations of this policy. Individuals may choose to report to a person of the individual's same gender. Every effort should be made to file such reports or complaints as soon as possible, while facts are known and potential witnesses are available.

Aggrieved individuals, if they feel comfortable doing so, should directly inform the person engaging in the harassing conduct or communicate that such conduct or communication is offensive and must stop.

Whom to Contact with a Report or Complaint

An employee should report claims of harassment, including making a confidential report, to any of the following: his/her immediate supervisor, the Building Principal, an administrator, the Nondiscrimination Coordinator, and/or a Complaint Manager.

Employee may also report claims using Board policy 2:260, *Uniform Grievance Procedure*. If a claim is reported using Board policy 2:260, then the Complaint Manager shall process and review the claim according to that policy, in addition to any response required by this policy.

The Superintendent shall insert into this policy the names, office addresses, email addresses, and telephone numbers of the District's current Nondiscrimination Coordinator and Complaint Managers. The Nondiscrimination Coordinator also serves as the District's Title IX Coordinator.

Nondiscrimination Coordinator:

Dr. Brian Coleman

Name

2115 Crystal Lake Road, Cary, IL 60013

Address

brian.coleman@cary26.org

Email

(224)-357-5100

Telephone

Complaint Managers:

Dr. Jennifer Thomas

Name

2115 Crystal Lake Road, Cary, IL 60013

Address

jennifer.thomas@cary26.org

Email

(224)-357-5100

Telephone

Mr. Brian DeRoo

Name

2115 Crystal Lake Road, Cary, IL 60013

Address

brian.deroo@cary26.org

Email

(224)-357-5100

Telephone

Investigation Process

Any District employee who receives a report or complaint of harassment must promptly forward the report or complaint to the Nondiscrimination Coordinator or a Complaint Manager. Any employee who fails to promptly forward a report or complaint may be disciplined, up to and including discharge.

Reports and complaints of harassment will be confidential to the greatest extent practicable, subject to the District's duty to investigate and maintain a workplace environment that is productive, respectful, and free of unlawful discrimination, including harassment.

For any report or complaint alleging sexual harassment that, if true, would implicate Title IX of the Education Amendments of 1972 (20 U.S.C. §1681 et seq.), the Nondiscrimination Coordinator or designee shall consider whether action under policy 2:265, Title IX Sexual Harassment Grievance Procedure, should be initiated.

For any other alleged workplace harassment that does not require action under policy 2:265, *Title IX Sexual Harassment Grievance Procedure*, the Nondiscrimination Coordinator or a Complaint Manager or designee shall consider whether an investigation under policy 2:260, *Uniform Grievance Procedure*, and/or 5:120, *Employee Ethics; Conduct, and Conflict of Interest*, should be initiated, regardless of whether a written report or complaint is filed.

Reports That Involve Alleged Incidents of Sexual Abuse of a Child by School Personnel

An *alleged incident of sexual abuse* is an incident of sexual abuse of a child, as defined in 720 ILCS 5/11-9.1A(b), that is alleged to have been perpetrated by school personnel, including a school vendor or volunteer, that occurred: on school grounds during a school activity; or outside of school grounds or not during a school activity.

Any complaint alleging an incident of sexual abuse shall be processed and reviewed according to policy 5:90, *Abused and Neglected Child Reporting*. In addition to reporting the suspected abuse, the complaint shall also be processed under policy 2:265, *Title IX Sexual Harassment Grievance Procedure*, or policy 2:260, *Uniform Grievance Procedure*.

Enforcement

A violation of this policy by an employee may result in discipline, up to and including discharge. A violation of this policy by a third party will be addressed in accordance with the authority of the Board in the context of the relationship of the third party to the District, e.g., vendor, parent, invitee, etc. Any person making a knowingly false accusation regarding harassment will likewise be subject to disciplinary action, which for an employee that may be up to and including discharge.

Retaliation Prohibited

An employee's employment, compensation, or work assignment shall not be adversely affected by complaining or providing information about harassment. Retaliation against employees for bringing complaints or providing information about harassment is prohibited (see Board policy 2:260, *Uniform Grievance Procedure*), and depending upon the law governing the complaint, whistleblower protection may be available under the State Officials and Employees Ethics Act (5 ILCS 430/), the Whistleblower Act (740 ILCS 174/), and the Ill. Human Rights Act (775 ILCS 5/).

An employee should report allegations of retaliation to his/her immediate supervisor, the Building Principal, an administrator, the Nondiscrimination Coordinator, and/or a Complaint Manager.

Employees who retaliate against others for reporting or complaining of violations of this policy or for participating in the reporting or complaint process will be subject to disciplinary action, up to and including discharge.

Recourse to State and Federal Fair Employment Practice Agencies

The District encourages all employees who have information regarding violations of this policy to report the information pursuant to this policy. The following government agencies are available to assist employees: the Ill. Dept. of Human Rights and the U.S. Equal Employment Opportunity Commission.

The Superintendent shall also use reasonable measures to inform staff members, applicants, and nonemployees of this policy, which shall include posting on the District website and/or making this policy available in the District's administrative office, and including this policy in the appropriate handbooks.

REVISED: July 16, 2007
 December 13, 2010
 April 30, 2018
 January 27, 2020
 August 24, 2020
 February 28, 2022